

however the agreement has since broken down. The matter was continued to allow Mr. Moody to obtain counsel. **An appearance is necessary on today's calendar.**

ESTATE OF HAROLD MONTGOMERY JR.

CASE NUMBER: 23PB-0032233

This matter is on calendar for hearing on a Successor Petition for Probate of Will. The will purports to give the entirety of the estate to the trustee of a trust. The Court notes the previous trustee was the Personal Representative of the estate and has passed away. Item 8 fails to identify the successor trustee of the trust. Due to the defect, the Court is unable to determine if proper notice has been provided and the requirement of a bond properly waived. The matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Probate of Will. Petitioner is required to file an amended Petition to address the issue raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

CASE NUMBER: 25PB-0032814

This matter is on calendar for hearing on a Sixth Amended Petition to Determine Succession to Primary Residence. The Court notes the Petition was revised by the Judicial Council on April 28, 2025, for mandatory use. Petitioner has used the prior version of form DE-310, "Petition to Determine Succession to Real Property." The Declaration filed by Counsel on April 6, 2026, requests that the Petition be determined under the prior version of Probate Code Sections 13150-13154. Petitioner contends that because the decedent died and the Petition was filed prior the revision of Probate Code Sections 13150-13154, the prior versions of the statutes apply. The prior versions do not require that the real property be the decedent's primary residence. Probate Code Sections 13150-13154 were revised pursuant to AB 2016 and became effective January 1, 2025 (not April 1, 2025).

Counsel further argues that Probate Code Section 13150(f) specifies that the applicable statutory framework depends on the date of death of the decedent. There is no language in the statutes limiting their application to the date of death. Probate Code Section 3(c) provides that, "a new law applies on the operative date to all matters governed by the new law, regardless of whether an event occurred or circumstance existed before, on, or after the operative date, including, but not limited to, creation of a fiduciary relationship, death of a person, commencement of a proceeding, making of an order, or taking of an action." Subsection (d) goes on to specify that:

"If a petition, account, report, inventory, appraisal, or other document or paper is filed before the operative date, the contents, execution, and notice thereof are governed by the old law and not by the new law; but any subsequent proceedings taken after the operative date concerning the petition, account, report, inventory, appraisal, or other document or paper, including an objection or response, a hearing, an order, or other matter relating thereto is governed by the new law and not by the old law."

The Sections apply as of the effective date, despite that the Judicial Council did not publish the revised form DE-310 until April 28, 2025. The original Petition in this case was filed on February 14, 2025, (not March 11, 2025), therefore the revised statutes applied at the time of filing.

This matter has been continued ten times to allow Petitioner to provide sufficient facts to show that the real property was the decedent's primary residence as required by Probate Code Section 13152. The

Petition states that, “Linda did not have any other residence outside of 17829 Shawn Drive. This was her primary residence. She was staying in North Carolina with family. There was no other residence she owned.” The Court cannot assume that because the decedent was staying with family and owned no other residence means that the subject property was her primary residence. No facts have been provided to support the assertion that the real property was her primary residence. The Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today’s calendar.**

ESTATE OF SUSAN PALMER

CASE NUMBER: 24PB-0032564

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Status of Administration. The Second Partial and Final Inventory and Appraisal filed on January 29, 2026, is accepted by the Court, despite that item 5 and the statement about the bond are incomplete. Item 5 was properly addressed on the previous Inventory and Appraisal, no additional real property has been identified, and the requirement of a bond has been waived, therefore the Court will overlook the defects.

No Petition for Final Distribution has been filed. A properly noticed Status Report has been filed stating that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court’s order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the August 24, 2026, date. **No appearance is necessary on today’s calendar.**

ESTATE OF DONALD RHODES

CASE NUMBER: 25PB-0033171

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court’s order. The Court notes the future date of January 11, 2027, for Status of Administration. **No appearance is necessary on today’s calendar.**

ESTATE OF TERESA ROTH-BURTON

CASE NUMBER: 25PB-0033183

This matter is on calendar for further proceedings on a second amended Petition for Probate of Lost Will. The Court previously found the matter to be properly noticed with proof of service on file. An objection was filed by Daniel Burton. The original will has been lodged. Proper proof of publication has not been filed to address the issues previously raised on April 6, 2026. The matter is continued to **Monday, June 22, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the second